IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

In re Patent Application of:	Reinaldo Javier Aguiar Marcano
Application Number:	19/562,825
Confirmation Number:	2233
Filing Date:	March 11, 2026
Group Art Unit:	To Be Assigned
Examiner:	TRAN, TRINH T.
Title of Invention:	SYSTEM FOR AN OPTICALLY-NATIVE CENTRAL PROCESSING UNIT

APPLICANT RESPONSE TO THE NOTICE OF INCOMPLETE REPLY AND FORMAL REQUEST TO HOLD PROCEDURE IN ABEYANCE PENDING DECISION ON THE DIRECTOR PETITION UNDER 37 CFR § 1.183

Commissioner for Patents
P.O. Box 1450
Alexandria, VA 22313-1450

Sir:

In response to the Notice of Incomplete Reply mailed on August 7, 2026, the pro se Applicant, Reinaldo Javier Aguiar Marcano, respectfully submits this formal response and requests the Office to hold all procedural deadlines and fee-payment requirements in abeyance pending the Director's decision on the active Petition under 37 CFR § 1.183.

1. Technical Compliance and Fee Payment Status

Applicant notes that the pre-examination page-layout deficiencies cited in the initial USPTO notices were **completely and successfully cured** by the replacement pages submitted on July 31, 2026. Specifically, Applicant cured:

- The requirement that the Claims commence on a separate page, in compliance with 37 CFR § 1.75(h) and § 1.121; and

- The requirement that the Abstract commence on a separate page, in compliance with 37 CFR § 1.172(b).

Furthermore, Applicant formally notes that the late declaration surcharge (**Fee Code: 3051**) and information disclosure statement fees (**Fee Code: 3806**) were **already paid in full** and processed on July 22, 2026, and July 27, 2026, as evidenced by Electronic Acknowledgment Receipt No. N417-9 and Payment Receipt No. N417.PYMT-9. No further surcharges are due.

Because the Notice of Incomplete Reply mailed on August 7, 2026, lists *only* the remaining basic filing fees under the "Items Required to Avoid Abandonment" section, namely:

1. The basic filing fee (37 CFR § 1.16(a));
2. The application search fee (37 CFR § 1.16(k));
3. The application examination fee (37 CFR § 1.16(o)); and
4. The fee for filing in non-DOCX format (37 CFR § 1.16(u)).

The record establishes that the Applicant is in **100% complete technical compliance** with all physical document, formatting, and administrative filing standards.

2. Notification of Pending Petition under 37 CFR § 1.183

Applicant formally notifies the Examiner and the Technology Center (TC) Director that on **August 2, 2026**, Applicant filed a formal **Petition to the Director under 37 CFR § 1.183 (Small Entity Fee Code 2462 paid in full)** to suspend prosecution on national defense procurement, constitutional due process, and physical incapacitation grounds.

This pending 1.183 Petition specifically requests the Director to suspend all prosecution and **stay all procedural deadlines and fee-payment requirements** in this application until such time as the Applicant's ongoing, state-court extrajudicial physical restraint is resolved and he is able to safely secure patent counsel.

3. Cross-Reference and Incorporation of the Master Hub Application 19/559,705 Record

To establish the full, certified factual context of the extraordinary circumstances justifying this request, and pursuant to the Applicant's duty of candor under 37 CFR § 1.56, the Examiner and

Technology Center (TC) Director are respectfully directed to the master record of Applicant's co-pending **Hub Application No. 19/559,705** (Filing Date: March 6, 2026; Title: *"HIGH-BANDWIDTH, LOW-LATENCY DATA TRANSMISSION SYSTEM AND PROTOCOL"*).

Specifically, the Examiner and Director are directed to:

1. The **Superseding Petition to Suspend Prosecution under 37 CFR § 1.183** e-filed in Hub Application No. 19/559,705 on August 2, 2026. This petition incorporates a comprehensive set of cryptographically verified administrative claims and exhibits (Exhibits E-1 through E-9) filed under DFARS 227.7004 with senior Department of Defense leadership and the general counsels of major aerospace contractors;
2. The companion **Petition to the Director under 37 CFR § 1.183 to Exercise the Mandatory Ministerial Duty to Waive Regulatory Pre-Examination Holds and Order Immediate Early Publication** e-filed in Hub Application No. 19/559,705 on August 4, 2026; and
3. The **active Emergency Application for Writ of Injunction and Stay pending before the Supreme Court of the United States (Docket No. 26A39)** and the companion high-court filings (including Habeas Corpus) attached directly as native exhibits to the aforementioned petitions.

Because the instant application is a direct technological daughter/companion in the Asynchronous Base Optical Computing Technological Cluster that natively extends the foundational optical link of the 19/559,705 Hub, the national security risks, mail blockade, and physical constraints detailed of record in the Hub application are identical and fully applicable here. Accordingly, Applicant incorporates the entire file wrapper and master litigation record of Application No. 19/559,705 herein by reference.

4. Request to Hold Fee Requirements in Abeyance and Defer Abandonment

Pursuant to administrative efficiency, judicial economy, and constitutional due process, Applicant respectfully requests that the USPTO **hold all fee-payment requirements** (including the basic filing, search, examination, and non-DOCX fees) **in abeyance** pending the final administrative decision of the Director on the active August 2, 2026 Petition under 37 CFR § 1.183.

Forcing a pro se applicant to pay substantial filing fees and non-DOCX surcharges while they have an active, pending Petition to waive and stay those exact rules would render the 1.183 Petition process moot and violate basic tenets of administrative fairness. Accordingly, Applicant requests that the USPTO defer any notices of abandonment or further pre-examination actions until the Office of Petitions has officially ruled of record on the 1.183 Petition.

5. Conditional Request for Extension of Time

To the extent that any extension of time is deemed procedurally necessary under 37 CFR § 1.136(a) to maintain the pendency of this response and prevent administrative abandonment, such extension is requested conditionally herein, with the request that the fees for such extension be held in abeyance or waived under the pending August 2, 2026 Petition under 37 CFR § 1.183.

Respectfully submitted,

/Reinaldo Javier Aguiar Marcano/
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August 7, 2026